

STATE OF MICHIGAN IN THE THIRD CIRCUIT COURT FOR THE COUNTY OF WAYNE

WAYNE COUNTY TREASURER, Plaintiff,

v. Case No. [INSERT CASE NUMBER FROM COUNTY] Hon. [INSERT JUDGE NAME FROM COUNTY]

DIEASHA D. DAVIS, Defendant/Claimant.
_____ /

AFFIDAVIT OF DIEASHA D. DAVIS IN SUPPORT OF EMERGENCY MOTION FOR IMMEDIATE RELIEF

STATE OF MICHIGAN)) ss. COUNTY OF OAKLAND)

I, Dieasha D. Davis, being first duly sworn, depose and state as follows:

PERSONAL BACKGROUND

1. My name is Dieasha D. Davis. I am over the age of 18 and competent to testify to the matters set forth in this affidavit.
2. I am the President and CEO of DEE DAVIS INC (CAGE Code: 8UMX3), a federally certified EDWOSB/WOSB/WBE/MBE woman-owned small business established in 2018.
3. My company operates eight specialized divisions including transportation services (DEPOINTE), DOT compliance and biometric services (3D Ink & Livescan Co), freight brokerage (Freight 1st Direct), and other services.
4. I currently reside at 13697 Silent Woods Drive, Shelby Township, Michigan 48315, where I have lived for approximately one and a half years.
5. I operate my business from a home office at this address.
6. My mailing address is 1221 Bowers Street, Suite 2141, Birmingham, Michigan 48012. This is a PO Box I use for business and official correspondence.

MY NINE YEARS OF HOMEOWNERSHIP (2010-2019)

7. In 2010, I purchased my first home at 19344 Strathcona Drive, Detroit, Michigan 48203 (Parcel ID: 02004687).

8. This was a historic Tudor home in the Palmer Woods neighborhood, one of Detroit's most desirable areas.

9. The purchase price was \$212,500.

10. I made a down payment of \$20,000 from my savings.

11. I obtained mortgage financing of \$192,500 to complete the purchase.

12. The mortgage was initially serviced by Bank of America and was later transferred to Bayview Loan Servicing.

13. My monthly mortgage payment was approximately \$2,200.

14. From 2010 through 2019, I made 108 consecutive monthly mortgage payments.

15. Over those nine years, I paid approximately \$237,600 in mortgage payments (\$2,200 per month $\times$ 108 months).

16. Combined with my \$20,000 down payment, I invested approximately \$257,600 in this property over nine years.

17. I was building equity in the property through both my principal payments and the appreciation in property values in the Palmer Woods neighborhood.

18. This was my home. I lived there, raised my family there, and was building toward the day I would own it free and clear.

19. I was approximately one-third of the way toward paying off my mortgage when the foreclosure occurred.

THE CIRCUMSTANCES LEADING TO FORECLOSURE

20. Around 2018-2019, my transportation and logistics business began experiencing severe financial difficulties.

21. The logistics industry was facing significant challenges, and my business revenue declined substantially.

22. I was struggling to pay both my mortgage and my property taxes.

23. I prioritized my mortgage payments because I feared losing my home.

24. Unfortunately, I fell behind on property taxes.

25. I was also dealing with my mortgage servicer, Bayview Loan Servicing, which I later learned has been the subject of numerous lawsuits and complaints regarding predatory lending practices and improper mortgage servicing.

26. Despite my best efforts to keep my home, Wayne County initiated tax foreclosure proceedings in 2019.

THE 2019 FORECLOSURE

27. In 2019, Wayne County foreclosed on my property for delinquent property taxes.

28. I received notices about the foreclosure, but I was unable to pay the full amount of back taxes to stop the foreclosure.

29. Wayne County obtained a judgment of foreclosure and sold my property at public auction.

30. I received nothing from that sale. Wayne County kept all proceeds.

31. I lost my home—the home I had invested \$257,600 in over nine years.

32. I lost all my equity.

33. Nine years of monthly mortgage payments, gone. My \$20,000 down payment, gone. All my equity from property appreciation, gone.

34. Wayne County gave me zero dollars.

LIFE AFTER LOSING MY HOME

35. After losing my home in 2019, I had to become a renter.

36. I have been trying to rebuild my life and my business ever since.

37. The COVID-19 pandemic in 2020 and its ongoing effects have made this rebuilding extremely difficult.

38. Like countless small businesses across the country, my transportation and logistics operations have suffered severe impacts from COVID-19 and its continuing effects on supply chains and the logistics industry.

39. Business has been extremely slow, resulting in significant financial hardship.

40. Despite these challenges, I have continued operating my business and serving my clients to the best of my ability.

MY TIMELY FILING FOR SURPLUS PROCEEDS

41. In 2024 and 2025, I learned about MCL 211.78t, which was enacted following Michigan Supreme Court decisions requiring counties to return surplus proceeds from tax foreclosure sales.

42. I learned that I might be entitled to surplus proceeds from the 2019 foreclosure sale of my property.

43. On February 12, 2025, I filed my Notice of Intent to Claim Interest in Foreclosure Sale Proceeds (Form 6156) with Wayne County Treasurer.

44. I provided my PO Box mailing address: 1221 Bowers Street, Suite 2141, Birmingham, Michigan 48012.

45. The statutory deadline for filing this notice was March 31, 2025. I filed nearly two months early.

46. On May 16, 2025, I received an acknowledgment letter from Wayne County Treasurer confirming receipt of my Notice of Intent and assigning Reference Number 831721WD08GCR.

47. I received this acknowledgment letter at my PO Box address, confirming that Wayne County had my correct mailing address.

48. In that letter, Wayne County stated: "Please note that this office will send you an additional notice on or before July 1, 2025 as required by Michigan law with further instructions and actions you must take with the Third Circuit Court to claim any portion of any remaining proceeds that you may be entitled to under MCL 211.78t."

MY PO BOX AND CHECKING PRACTICES

49. I check my PO Box once or twice per month, which is approximately every two to three weeks. This is a reasonable and appropriate frequency for business mail and government correspondence.

50. PO Box facilities nationwide have well-known mail delivery issues. Mail is frequently misdelivered to incorrect boxes. This is not unique to any particular facility - it is a systemic issue with PO Box mail delivery throughout the United States Postal Service system.

51. I regularly receive mail in my PO Box that is addressed to other box holders at this facility. This happens at least once or twice per month. Presumably, my mail is sometimes placed in other boxes as well.

52. This is a well-documented, widespread problem with PO Box mail delivery and is exactly why certified mail with signature confirmation exists - to ensure important notices requiring legal action actually reach the intended recipient.

53. After receiving County's May 16, 2025 acknowledgment letter at my PO Box, I expected to receive the Motion Notice County promised to send by July 1, 2025.

54. The statute provided a three-month window from July 1, 2025 to October 1, 2025 to file motions to claim proceeds.

55. During this three-month period, I checked my PO Box once or twice per month in July, August, and September 2025. This means I checked my PO Box approximately three to six times during the filing window.

56. Each time I checked, I received other mail, demonstrating that I was actively monitoring the box and that mail delivery to this address was functioning.

57. However, I never received any Motion Notice from Wayne County during any of these checks.

58. I continued checking my PO Box once or twice per month throughout October, November, December, January, and early February 2026.

59. I have never received any Motion Notice from Wayne County at any time after the May 16, 2025 acknowledgment letter.

60. Seven months have now passed since the July 1, 2025 deadline for County to send the Motion Notice. If County had sent notice by regular mail and it was undeliverable, it would have been returned to County by now.

61. The fact that County apparently has not received returned mail suggests that County never sent the notice in the first place.

62. Alternatively, if County did send notice by regular mail, it may have been lost in the postal system or misdelivered to another box at the PO Box facility, which demonstrates exactly why regular first-class mail to a PO Box is constitutionally inadequate notice for property rights worth potentially \$60,000 to \$225,000.

COUNTY'S INADEQUATE NOTICE METHOD

63. Given the known unreliability of regular mail to PO Boxes, Wayne County should have used certified mail for notice regarding property rights of this magnitude.

64. Certified mail would have provided: a. Confirmation that County actually mailed the notice (tracking number) b. Tracking information to monitor delivery status c. Signature requirement ensuring I received it d. Return to County if I didn't pick it up within the required timeframe, alerting County that I had not received notice

65. County chose not to use certified mail, despite its ready availability and despite the substantial property rights at stake.

66. The additional cost for certified mail would have been approximately \$8 per notice - a minimal expense compared to the property rights at stake.

67. County chose the least reliable method of notice available and must bear the consequences of that choice.

68. Without the case number and other information County was required to provide in the Motion Notice, I could not file the required Motion to Claim Remaining Proceeds by the October 1, 2025 deadline.

69. I attempted to determine how to proceed but was unable to file without the specific information County was required by statute to provide.

70. The October 1, 2025 deadline passed while I waited for information Wayne County was required by law to provide.

THE CURRENT CRISIS

71. I currently rent a home at 13697 Silent Woods Drive, Shelby Township, Michigan 48315.

72. I have lived at this address for approximately one and a half years.

73. My monthly rent is \$3,500.

74. I operate my business from a home office at this residence.

75. Due to the continued challenges in the logistics industry and the slow business conditions, I have fallen behind on my rent.

76. As of February 1, 2026, I owe two months of back rent totaling \$7,200 (December 2025 and January 2026).

77. February 2026 rent of \$3,500 is also now due.

78. On February 1, 2026, I received written notice from my landlord regarding the unpaid rent.

79. My landlord is threatening eviction if I do not pay the back rent immediately.

80. I am facing imminent eviction from my home.

81. If I am evicted, I will lose not only my housing but also my business operations, as I operate from my home office.

I HAVE EXHAUSTED ALL OTHER OPTIONS

82. I have desperately tried to find a way to pay the back rent and avoid eviction.

83. I have sought financial assistance from family members, but they are unable to provide the funds I need.

84. I have sought financial assistance from friends, but they are unable to help with an amount this large.

85. I have applied for emergency rental assistance programs, but I have been unable to secure timely assistance.

86. I have attempted to negotiate with my landlord for additional time, but my landlord requires payment and is proceeding with eviction.

87. I have sought loans from banks and financial institutions, but I have been unable to qualify given my current financial circumstances and business revenue.

88. I have attempted to secure advance payments from business clients to cover the rent, but I have been unsuccessful.

89. In desperation, I even sold my personal vehicle to raise funds.

90. The money from selling my car helped with some expenses but was insufficient to cover all the back rent and ongoing obligations.

91. I have explored every possible option to avoid eviction.

92. I have no other source of funds available.

93. The only funds to which I have any potential access are the surplus proceeds from the 2019 foreclosure—the proceeds that represent my \$257,600 investment in my

home, the equity I built over nine years, and which Wayne County has been holding for seven years.

THE PROPERTY'S VALUE

94. Wayne County sold my property at public auction in 2019. I do not know the exact auction sale price because Wayne County has not provided me with this information.

95. However, I have learned that the property was resold on the private market on May 15, 2020—just eight months after the county auction—for \$283,400.

96. This indicates that significant equity existed in the property at the time of foreclosure.

97. Based on this resale price and what I understand about the tax foreclosure process, I believe substantial surplus proceeds should be available after Wayne County takes its portion for taxes and costs.

98. If my mortgage company filed a claim by the March 31, 2025 deadline, they would be entitled to payment before me under the statutory priority. But I would still be entitled to any remaining surplus.

99. If my mortgage company did not file a claim by the deadline, they forfeited their claim, and I would be entitled to the full surplus after Wayne County's portion.

100. Either way, I believe the surplus proceeds available to me could range from \$60,000 to \$225,000 or more, depending on the auction sale price and whether the mortgage company filed a claim.

WHAT I AM ASKING

101. I am asking this Court to prevent my eviction while my claim for surplus proceeds is adjudicated.

102. I am asking this Court to order Wayne County to make a preliminary payment of \$10,700 to enable me to pay my back rent (\$7,200) and March rent (\$3,500) and avoid eviction.

103. This amount represents a small fraction of the surplus proceeds that likely exist.

104. If the Court orders this preliminary payment, and it is later determined that I am not entitled to these funds (which I do not believe will be the case), County can recover them in the final allocation order.

105. But if the Court does not grant relief, and I am evicted, that harm cannot be undone.

106. I cannot "un-lose" a home. I cannot "un-relocate" my business. I cannot undo eviction.

107. I am also asking this Court to order Wayne County to provide me with the information it was required by law to provide by July 1, 2025: • The case number of the original foreclosure • The date of the foreclosure judgment • The date and price of the auction sale • The amounts claimed by County and any other claimants • All other information I need to pursue my claim

THE TRAJECTORY OF MY LIFE

108. In 2010, I became a homeowner. I was proud to own my first home. I was building equity. I was building toward owning my home free and clear. I was building a future.

109. From 2010 to 2019, I made 108 consecutive monthly mortgage payments. I invested \$257,600 over nine years. I was one-third of the way to paying off my mortgage.

110. In 2019, facing business difficulties, I lost my home to county tax foreclosure. Wayne County gave me nothing. Nine years of investment, gone.

111. From 2019 to 2025, I became a renter. I tried to rebuild my life and my business. The COVID-19 pandemic made this incredibly difficult.

112. In 2025, I learned I could claim surplus proceeds. I filed timely—nearly two months early. County acknowledged my claim but then failed to provide the information I needed to pursue it.

113. In 2026, I received an eviction notice. I face homelessness while Wayne County holds my equity from nine years of homeownership.

114. This trajectory—from homeowner to renter to homeless—should not be my story, especially not while Wayne County sits on proceeds from my \$257,600 investment.

CONCLUSION

115. I am not asking for charity. I am not asking for something I am not entitled to.

116. I am asking for what is mine: the surplus proceeds from the foreclosure sale of property in which I invested \$257,600 over nine years.

117. I filed my claim timely. I did everything I was supposed to do. Wayne County failed to comply with the law by not sending the required Motion Notice or by using an inadequate notice method that failed to reach me.

118. I should not be penalized for Wayne County's failure.

119. I should not lose my rental home and my business while Wayne County holds the equity I built as a homeowner.

120. I respectfully ask this Court to exercise its authority to prevent this injustice.

121. All of the statements in this affidavit are true and correct to the best of my knowledge, information, and belief.

I declare under penalty of perjury that the foregoing is true and correct.

Executed on _____, 2026, at Shelby Township, Michigan.

_____ DIEASHA D. DAVIS

Subscribed and sworn to before me this ____ day of _____, 2026.

_____ Notary Public Oakland County, Michigan
My Commission Expires: _____ Acting in the County of _____